

Court No. - 38

Case :- WRIT - C No. - 30469 of 2018

Petitioner :- Satya Prakash Sharma

Respondent :- Dakshinanchal Viddyut Vitran Nigam Ltd.
And Another

Counsel for Petitioner :- Anshika Agarwal, Vishal
Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Rajiv Gupta,J.

As prayed by learned counsel for the petitioner, put up as
fresh on 12.9.2018

Order Date :- 7.9.2018

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(Rajiv Gupta,J.) (Abhinava Upadhya,J.)

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Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Rajiv Gupta,J.

Heard Sri Vishal Agarwal, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the electricity department.

By means of this writ petition, the petitioner has come up to this Court challenging the recovery certificate dated 24.3.2017, which is said to have been served upon the petitioner on 26.8.2018.

It is submitted that electricity connection is not in his name and, therefore, no dues are pending against the petitioner.

Sri Baleshwar Chaturvedi, learned counsel for the electricity department submits that the petitioner is resident of the premises where the electricity connection was given. The petitioner is disputing the dues, as such the petitioner has a remedy of approaching the Executive Engineer under Paragraph No. 6.5 of the Electricity Supply Code, 2005.

The writ petition is disposed of with a direction that if the petitioner approaches the Executive Engineer under Paragraph No. 6.5 of the Electricity Supply Code, 2005, the claim of the petitioner will be considered and decided in accordance with law within a period of one month from today.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to the recovery certificate dated 24.3.2017, served upon the petitioner on 26.8.2018.

Order Date :- 12.9.2018

A. Pt. Singh

(Rajiv Gupta, J.) (Abhinava Upadhya,J.)